

NGOVA TRADING (PTY) LTD

t/a NGOVA SECURITY SERVICES

PSIRA Registration No: 2766562 | Company Reg: 2016/035498/07

Registered Address: 48 Mynhardt Street, Unit 10, Gants Plaza, Strand, 7140

Tel: 021 360 8201 | Email: compliance@ngova-security.com

TERMS OF SERVICE & TACTICAL DEPLOYMENT POLICIES

1. CONSTITUTION OF GENERAL SERVICE CODE

These Terms of Service govern the deployment, physical security force placement, armed tactical reaction, surveillance monitoring, and security risk assessment services provided by Ngova Trading (Pty) Ltd as Ngova Security Services (PSIRA Registration No. 2766562). Subscription to services or signature on service level agreements binds the client to these conditions in full. Security operations and guard deployments are performed strictly under the regulations of the Private Security Industry Regulation Act 56 of 2001 (PSIRA).

2. STANDARD DEPLOYMENT RATING AND GRADE REQUIREMENTS

All guards deployed onto client premises are certified PSIRA cardholders, registered in accordance with statutory grading frameworks (Grade C for basic patrol and asset protection, Grade B for operational site supervisors, and Grade A / Elite Tactical Reaction for high-risk threat suppression and armed operations). Guard assignments operate under lawful police-support perimeters and active self-defense rules.

3. INDEMNITY WAIVER AND LIMITATIONS OF LIABILITY

- **RISK ACKNOWLEDGEMENT:** The Client explicitly acknowledges that security patrol, armed tactical reaction, and guarding operations carry highly severe inherent risks, including property damage, arson, armed criminal trespass, hostage danger, and life-safety confrontation. All services are subscribed to voluntarily under full awareness of these security variables.
- **ABSOLUTE LIMITATION OF LIABILITY:** Ngova Security, its directors, regional managers, and deployed field tactical operators shall NOT be held liable for any direct, indirect, incidental, or consequential losses, damage to assets, injury, or loss of life occurring on Client premises during active operations, except in proven instances of gross intentional corporate negligence.
- **CLIENT INDEMNIFICATION:** The Client hereby indemnifies and holds harmless Ngova Security and its armed response operators against any third-party claims, liabilities, asset damages, or legal costs resulting from defensive armed shootouts, threat neutralization events, or forceable entries performed in the course of safeguarding human lives and securing perimeters.

4. WORKPLACE WELFARE AND COMPLIANCE CONDITIONS

To preserve the health and tactical focus of deployed operators under our statutory code of conduct and Basic Conditions of Employment / OHS laws, the Client must guarantee:

- a) Sanitary water access and access to functional restroom facilities for guards.
- b) Shelter provisions (wind-proof, secured guard houses or booths) equipped with lights.
- c) Direct incident emergency telephone line access at checkpoints.

5. FIREARMS CONTROL ACT COMPLIANCE

Any high-risk deployment of armed officers or specialized canine squads is governed under the Firearms Control Act 60 of 2000. Weapon discharges are subjected to statutory internal compliance audits and reported in writing to both the PSIRA registry and South African state authorities.

6. NON-SOLICITATION COVENANT AND FINE

The Client is contractually prohibited from recruiting, soliciting, or employing any guard, tactical reaction officer, site supervisor, or manager trained and deployed by Ngova Security, either directly or indirectly, during the course of the

agreement and for a subsequent duration of twelve (12) calendar months after service termination. Violation of this covenant triggers an immediate, non-negotiable statutory training compensatory fee of R150,000 per officer.

7. OUTSTANDING BILLING, INTEREST AND CANCELLATION RULES

Monthly service accounts are due in ZAR on or before the 1st day of the subscription month. Suspended or late accounts accumulate compound administrative interest at SA Prime plus 2% compiled daily. Continuous physical guarding contracts can only be cancelled via one full calendar month written notice mailed directly to compliance@ngova-security.com.

CO-SIGNED ACKNOWLEDGEMENT OF TERMS

Executive Director
Client Representative / Signatory

NGOVA EXECUTIVE CO-SIGN
Ngova Security Executive Officer